

IN THE SUPREME COURT OF THE UNITED KINGDOM
ON APPEAL FROM THE COURT OF APPEAL (CIVIL DIVISION)

Between:

Brockwell Inn

Appellant

– and –

R (on the application of) BARBARA

Respondent

COUNSEL FOR THE APPELLANT’S LIST OF AUTHORITIES

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IN THE SUPREME COURT OF THE UNITED KINGDOM
ON APPEAL FROM THE COURT OF APPEAL (CIVIL DIVISION)

Between:

BROCKWELL INN (Appellant)

v

R (on the application of) BARBARA (Respondent)

SENIOR COUNSEL FOR THE APPELLANT’S LIST OF AUTHORITIES

Cases:

1. *YL v Birmingham City Council* [2007] UKHL 27
2. *Aston Cantlow Parochial Church Council v Wallbank* [2003] UKHL 37
3. *R (Weaver) v London and Quadrant Housing* [2009] EWCA Civ 587

Journals/Books

- *Land Law*, Ben McFarlane, Nicholas Hopkins and Sarah Nield
- *Administrative Law*, Craig

Submitted on behalf of counsel for the Appellant:
Laura Speirs 6 February 2026

BROCKWELL INN (Appellant)

v

R (on the application of) BARBARA (Respondent)

SENIOR COUNSEL FOR THE APPELLANT’S OUTLINE OF ARGUMENT

The Question on the appeal:

Brockwell Inn is not a “public authority” for the purposes of the Human Rights Act 1998 (HRA).

1. **The Inn is not a core public authority for the purposes of section 6 of the HRA.** The Inn is essentially a charity and not a governmental organisation. The functions of the charity are not wholly of a public nature, and thus it is not a core public authority, as in *Aston Cantlow Parochial Church Council v Wallbank* [2003] UKHL 37.
 1. The mere fact of public funding by the local authority to cover the costs the Inn incurs in housing people does not render that function public in nature (Craig KC, 2021).
 2. A hybrid public authority is bound by the HRA only in respect of acts which are public in nature (McFarlane, Hopkins KC, Nield, 2012).
 3. The Inn is exercising contracted-out activities. As in *YL v Birmingham City Council* [2007] UKHL 27, the contractual provision of accommodation by a private party, even when paid for by a local authority, is not a function of a public nature, and thus not subject to the HRA.
 4. The Council is ultimately responsible for contracted-out action taken out by the Inn, as in *YL v Birmingham City Council*. The local authority is ultimately responsible for action taken out by the body to whom the power has been contracted-out (Craig KC, 2021).
 5. Contracting-out certain services previously performed by local authorities may legitimately avoid some of the legal constraints and disadvantages which apply to local authorities but not to private parties, as in *R (Weaver) v London and Quadrant Housing* [2009] EWCA Civ 587.
2. **Brockwell Inn was not exercising “functions of a public nature” when acting under the Scheme, and is thus not a “public authority” for the purposes of section 6 of the Human Rights Act 1998** in respect of the decision to remove Barbara.

HOUSE OF LORDS

SESSION 2006–07

[2007] UKHL 27

on appeal from: [2007] EWCA Civ 27

OPINIONS
OF THE LORDS OF APPEAL
FOR JUDGMENT IN THE CAUSE

YL (by her litigation friend the Official Solicitor) (FC) (Appellant)

v.

Birmingham City Council and others (Respondents)

Appellate Committee

Lord Bingham of Cornhill

Lord Scott of Foscote

Baroness Hale of Richmond

Lord Mance

Lord Neuberger of Abbotsbury

Counsel

Appellants:
David Pannick QC
Ian Wise
Naina Patel
(Instructed by Irwin
Mitchell)

1st Respondent:
Andrew Arden QC
David Carter
(Instructed by Birmingham
City Council Legal
Department)

2nd Respondent:
Beverley Lang QC
Ivan Hare
(Instructed by Lester
Aldridge)

3rd and 4th Respondents:
Helen Mountfield
(Instructed by Bailey
Wright & Co)

Interveners

*Secretary of State for
Constitutional Affairs*
Philip Sales QC
Cecilia Ivimy
(Instructed by Treasury
Solicitor)

Justice, Liberty and BIHR
Michael Fordham QC
Jessica Simor
Iain Steele
(Instructed by Liberty)

*Help the Aged and the
National Council on Ageing*
Rabinder Singh QC
David Wolfe
Samantha Knights
(Instructed by Help the
Aged and the National
Council on Ageing)

*Disability Rights
Commission*
Robin Allen QC
David Wolfe
(Instructed by Disability
Rights Commission)

Hearing dates:

30 April, 1 and 2 May 2007

ON
WEDNESDAY 20 JUNE 2007

immediate adverse impact on a person's Convention protected interests. Second, the State may in some circumstances remain responsible for the conduct of private law institutions to which it has delegated state powers. The case law does not always distinguish clearly between these principles.

93. Examples of the first principle are *Botta v Italy* (1998) 26 EHRR 241 and *Marzari v Italy* (1999) 28 EHRR CD 175 (failure to protect an individual's right to respect for private life) and *Z v United Kingdom* (2001) 34 EHRR 97 (local authority's failure to protect children known to be suffering ill-treatment). In *R (Bernard) v Enfield London Borough Council* [2002] EWHC 2282 (Admin), [2003] LGR 423, Sullivan J on the same principle held responsible a local authority which in breach of article 8 failed to act for over 20 months on assessments of need under section 47 of the National Health Service and Community Care Act 1990, which should have led it to arrange care and accommodation under section 21 of the National Assistance Act 1948, as amended.

94. *Storck v Germany* (2005) 43 EHRR 96 falls under the same principle. The Federal Republic was responsible in respect of the applicant's confinement in a private clinic in circumstances not authorised by a court or any other state entity, in view of (a) the lack at the time of any system for supervision by state authorities of the lawfulness and conditions of confinement of persons treated in such a clinic, and (b) the use of police force to return the applicant to the clinic after she had fled (paras 90 and 91). At one point (para 103), the European Court of Human Rights in *Storck* noted that the State could not "completely absolve itself from its responsibility" by delegating its obligations:

".... the State is under an obligation to secure to its citizens their right to physical integrity under article 8 of the Convention. For this purpose there are hospitals run by the State which co-exist with private hospitals. The State cannot completely absolve itself from its responsibility by delegating its obligations in this sphere to private bodies or individuals."

This was followed by a reference to *Costello-Roberts v United Kingdom* (1993) 19 EHRR 112 and the observation that "similarly, in the present case, the State remained under a duty to exercise supervision and control over private psychiatric institutions" (para 103). It is clear that the basis

138. The same conclusion must logically apply where the contract for the provision of care and accommodation in a privately owned care home is arranged and/or paid for by a third party, such as a relative of the person concerned. In other words, by entering into (whether pursuant to an arrangement with that person or a third party) and performing a contract for the provision of care and accommodation for a person “who by reason of age, illness [or] disability [is] in need of care and attention which is not otherwise available to [her]”, a care home proprietor does not appear to me to be performing a “function” which is, at least intrinsically, “of a public nature”, at least in the absence of telling reasons of policy or principle to the contrary.

139. As I see it, the basis for justifying a different conclusion in this case essentially rests on three further factors. First, the contract whereby Southern Cross Healthcare Ltd agreed to provide Mrs YL with care and accommodation was made as a result of Birmingham City Council carrying out its duty to arrange for care and accommodation for Mrs YL under section 21(1) of the 1948 Act under its “umbrella agreement” with Southern Cross. Secondly, the majority of the care home charges for Mrs YL’s care and accommodation were paid to Southern Cross by Birmingham, pursuant to the same statutory duty. Thirdly, Birmingham itself could have provided Mrs YL with care and accommodation pursuant to the 1948 Act.

140. While the statutory involvement of Birmingham can fairly be said to give the function performed by Southern Cross in providing care and accommodation for Mrs YL a public connection, I do not consider that it can, at least on its own, convert that function into one “of a public nature” which engages section 6(3)(b). Birmingham’s function in connection with the provision of the care and accommodation, according to its counsel, Mr Arden QC, fairly can be described as being of a public nature, but that is not really in point for two reasons.

141. First, at any rate in the context of section 6, it is meaningless, and therefore potentially misleading, to describe a function of a core public authority as being “of a public nature”, as that concept (like that of “an act which is private”) has relevance only to hybrid authorities. Secondly, even if Birmingham performed a function of a public nature by arranging the care and accommodation in accordance with its statutory duty, that would not mean, either as a matter of logic or policy, that the actual provision of the care and accommodation to Mrs YL by Southern Cross pursuant to a private law contract must thereby be converted from what would otherwise be a function of a private nature into one of a

public nature. If the Ministry of Defence placed an order for military materiel with a private manufacturer, the Ministry could fairly be said, as a matter of ordinary language, to be carrying out a function of a public nature in placing the contract, but it would not follow, in my opinion, that the manufacturer would be carrying out a function of a public nature in performing the contract.

142. The fact that Southern Cross was paid by Birmingham for the provision in its care home of care and accommodation for Mrs YL does not appear to me to render such provision a “function of a public nature”, at any rate on its own. It may well be that an activity of an entity which is not a core public authority is often unlikely to be a “function of a public nature” if it is not ultimately funded by a core public authority, but, again as a matter of logic and language, it cannot be a sufficient condition, in my view. Otherwise, the activities of every employee and every supplier of a core public authority would be within section 6(1).

143. The existence of the umbrella agreement between Birmingham and Southern Cross does not, in my view, take matters further. It merely reflects the fact that Birmingham recognises that it will have to perform its statutory duty under section 21(1) of the 1948 Act to a number of persons, and that it wishes to have the basis on which it gives effect to the “arrangements”, which it has to make under section 21(1) of the 1948 Act, identified in advance.

144. The fact that Birmingham, as a core public authority, could have provided care and accommodation for Mrs YL in a care home which it ran itself seems to me to be a factor which assists the contention that Southern Cross is performing a function of a public nature, but only to a limited extent. It is certainly not a sufficient condition: indeed, it appears to me to be more like a necessary condition. While it would be wrong to be didactic in this difficult area, I suspect that it would be a relatively rare case where a company could be performing a “function of a public nature” if it was carrying on an activity which could not be carried out by any core public authority. On the other hand, I would not accept that the mere fact that a core public authority, even where it is the body funding the activity, could carry out the activity concerned must mean that the activity is such a function. Apart from anything else, there must scarcely be an activity which cannot be carried out by some core public authority.

SESSION 2002-03
[2003] UKHL 37
on appeal from:[2001] EWCA Civ 713

IN THE HOUSE OF LORDS

Thursday 26th June, 2003

B e f o r e:

LORD NICHOLLS OF BIRKENHEAD,

LORD HOPE OF CRAIGHEAD,

LORD HOBHOUSE OF WOODBOROUGH,

LORD SCOTT OF FOSCOTE,

LORD RODGER OF EARLSFERRY

PAROCHIAL CHURCH COUNCIL OF THE PARISH OF ASTON CANTLOW
AND WILMCOTE WITH BILLESLEY, WARWICKSHIRE

Appellants

- v -

WALLBANK AND ANOTHER

Respondents

J U D G M E N T

member of the Church of England. In that context, perhaps, it may be said in a very loose sense to be a public rather than a private body.

59. But none of these characteristics indicate that it is a governmental organisation, as that phrase is understood in the context of article 34 of the Convention. It plainly has nothing whatever to do with the process of either central or local government. It is not accountable to the general public for what it does. It receives no public funding, apart from occasional grants from English Heritage for the preservation of its historic buildings. In that respect it is in a position which is no different from that of any private individual. The statutory powers which it has been given by the Chancel Repairs Act 1932 are not exercisable against the public generally or any class or group of persons which forms part of it. The purpose of that Act, as its long title indicates, was to abolish proceedings in ecclesiastical courts for enforcing the liability to repair. The only person against whom the liability may be enforced is the person who, in that obscure phrase, "would, but for the provisions of this Act, have been liable to be admonished to repair the chancel by the appropriate ecclesiastical court in a cause of office promoted against him in that court on the date when the notice was served:" see section 2(3); *Wickhambrook Parochial Church Council v Croxford* [1935] 2 KB 417, 429, per Lord Hanworth MR.
60. Then there is the fact that the PCC is part of the Church of England. The Court of Appeal said that it exemplifies the special status of the church of which it forms part: [2002] Ch 51, 61, para 32. The fact that it forms part of the church by law established showed, it was said, that the PCC is a public authority: p 63, para 35. The implication of these observations is that other bodies such as diocesan and deanery synods and the General Synod itself fall into the same category. In my opinion however the legal framework of the Church of England as a church by law established does not lead to this conclusion.
61. The Church of England as a whole has no legal status or personality. There is no Act of Parliament that purports to establish it as the Church of England: *Sir Lewis Dibden, Establishment in England: Essays on Church and State* (1932), p111. What establishment in law means is that the state has incorporated its law into the law of the realm as a branch of its general law. In *Marshall v Graham* [1907] 2 KB 112, 126 Phillimore J said:

"A Church which is established is not thereby made a department of the State. The process of establishment means that the State has accepted the Church as the religious body in its opinion truly teaching the Christian faith, and given to it a certain legal position, and to its decrees, if rendered under certain legal conditions, certain civil sanctions."

The Church of England is identified with the state in other ways, the monarch being head of each: see *Norman Doe, The Legal Framework of the Church of England* (1996), p 9. It has regulatory functions within its own sphere, but it cannot be said to be part of government. The state has not surrendered or delegated any of its functions

165. In *Hautanemi v Sweden* (1996) 22 EHRR CD 155 the applicants were members of a parish of the Church of Sweden who complained of a violation of article 9 of the Convention because the Assembly of the Church of Sweden had prohibited the use of the liturgy of the Finnish Evangelical-Lutheran Church in their parish. Under reference to the judgment in the *Holy Monasteries* case, the Commission recalled article 25(1) (now article 34) of the Convention and observed, at p 155, that
- "at the relevant time the Church of Sweden and its member parishes were to be regarded as corporations of public law. Since these religious bodies cannot be considered to have been exercising governmental powers, the Church of Sweden and notably the applicant parish can nevertheless be regarded as 'non-governmental organisations' within the meaning of article 25(1)."
- Having held that, as members of the parish, the applicants could be regarded as victims in terms of article 25(1), the Commission added, at p 156:
- "The Commission has just found that, for the purposes of article 25 of the Convention, the Church of Sweden and its member parishes are to be regarded as 'non-governmental organisations'. It follows that the respondent state cannot be held responsible for the alleged violation of the applicants' freedom of religion resulting from the decision of the Church Assembly There has thus been no State interference with that freedom."
166. In the light of these decisions what matters is that **the PCC's general function is to carry out the religious mission of the Church in the parish, rather than to exercise any governmental power**. Moreover, the PCC is not in any sense under the supervision of the state: under section 9 of the 1956 Measure it is the bishop who has certain powers in relation to the PCC's activities. In these circumstances the fact that the PCC is constituted as a body corporate under the 1956 Measure is irrelevant. For these reasons, in respectful disagreement with the Court of Appeal, **I consider that the PCC is not a core public authority for purposes of section 6 of the Act**.
167. This conclusion finds further support in the treatment of certain churches in relation to article 19(4) of the German Constitution or Grundgesetz. That article provides that, if any person's rights are infringed by "public power" ("öffentliche Gewalt"), recourse to the courts is open to him. The history of relations between Church and State in Germany is, of course, very different from the history of that relationship in any part of the United Kingdom. In Germany it has culminated in a declaration that there is to be no State Church (article 137(1) of the Weimar Constitution incorporated by article 140 of the Constitution). This important difference must not be overlooked. Nevertheless, as permitted by article 137, certain churches are constituted as public law corporations. In general, domestic public law entities are regarded as exercising public power in terms of article 19(4), whereas natural persons and private law associations are not. Despite this, because of their particular (religious) mission which does not derive from the state, the churches that are public law corporations are treated differently from other public law corporations that are organically integrated into the state. "Church power is indeed public, but not state power" ("ist kirchliche Gewalt zwar öffentliche, aber nicht staatliche Gewalt"): BVerfGE 18, 385, 386 - 387; BVerfGE 25, 226, 228 - 229. So, in relation to these churches, the Constitutional Court



Neutral Citation Number: [2009] EWCA Civ 587

Case No: B5/2008/1638/QBACF

IN THE SUPREME COURT OF JUDICATURE
COURT OF APPEAL (CIVIL DIVISION)
ON APPEAL FROM THE ADMINISTRATIVE COURT/DIVISIONAL COURT
(Rt Hon Lord Justice Richards and Hon Mrs Justice Swift DBE)
Ref C1/2008/1638

Royal Courts of Justice
Strand, London, WC2A 2LL

Date: 18/06/2009

Before :

LORD JUSTICE RIX

and

LORD JUSTICE LAWRENCE COLLINS
(now LORD COLLINS of MAPESBURY)

and

LORD JUSTICE ELIAS

Between :

LONDON & QUADRANT HOUSING TRUST	<u>Appellant</u>
- and -	
THE QUEEN ON THE APPLICATION OF WEAVER	<u>Respondent</u>
- and -	
EQUALITY & HUMAN RIGHTS COMMISSION	<u>Intervenor</u>

(Transcript of the Handed Down Judgment of
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Official Shorthand Writers to the Court)

ANDREW ARDEN (One of Her Majesty's Counsel) and CHRISTOPHER BAKER
(instructed by Messrs Devonshires) for the **Appellant**
RICHARD DRABBLE (One of Her Majesty's Counsel) and MATTHEW HUTCHINGS
(instructed by Messrs Brian McKenna & Co) for the **Respondent**
JAN LUBA (One of Her Majesty's Counsel) (instructed by Louise Curtis, Solicitor,
Equality and Human Rights Commission) for the Intervenor

otherwise the provision of meals or the repairing of buildings or the manufacture of military materiel would be caught. More generally, policy considerations concerning contracting out weighed in the opposite direction:

“It is thought to be desirable, in some circumstances, to encourage core public authorities to contract-out services, and it may well be inimical to that policy if section 6(1) automatically applied to the contractor as it would to the authority. Indeed, unattractive though it may be to some people, one of the purposes of contracting-out at least certain services previously performed by local authorities may be to avoid some of the legal constraints and disadvantages which apply to local authorities but not to private operators...[T]he fact that there are competing arguments makes it hard to justify the courts resolving the instant issue by reference to policy” (at para 152).

143. Finally, Lord Neuberger came to his “wider perspective” (at para 154). He considered that only some wider policy considerations, if available, could bolster the various factors that he had so far considered, even taken together, into a conclusion in favour of Mrs YL on the section 6(3)(b) issue. It was at this point that Lord Neuberger turned to Strasbourg jurisprudence and to previous authority in the form of *Aston Cantlow* for guidance. There was nothing in the former to support Mrs YL’s claim, while dicta in *Aston Cantlow* emphasised the distinction between functions of an inherently governmental nature (such as running a prison, discharging a statutory regulatory regime or maintaining defence, see at para 166) and those that were not, such as maintenance or cleaning contracts (at para 162).

144. It was in this context that Lord Neuberger contrasted the public funding of an impecunious individual in *YL* with the situation where -

“the funding effectively subsidises, in whole or in part, the cost of the service as a whole...Thus, it appears to me to be far easier to argue that section 6(3)(b) is engaged in relation to the provision of free housing by an entity all of whose activities are wholly funded by a local authority, than it is in relation to the provision of housing by an independently funded entity to impecunious tenants whose rent is paid by the local authority.”

145. In a final checklist, Lord Neuberger concluded that the following considerations, in no particular order, taken together led to his decision that the provision of care and accommodation by the company was not a function of a public nature within section 6(3)(b), despite being paid for by a local authority pursuant to its statutory duty: (a) the company’s activities would not be subject to judicial review; (b) Mrs YL would not be

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LAND LAW

TEXT, CASES,
AND MATERIALS

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2.2.1 Public authorities

Central to vertical effect is what we mean by a ‘public authority’. A distinction must be drawn between *core* public authorities, the entire functions of which fall to be considered under s 6, and *hybrid* public authorities, which may not appear to be public in nature, but which may nevertheless carry out some public functions. **In the performance of these public functions, hybrid bodies are subject to s 6.**¹³ The House of Lords made this functional distinction in *Aston Cantlow and Wilmcote with Billesley Parochial Church Council v Wallbank*,¹⁴ when rejecting the suggestion that a parochial church council was a public authority.

A core public authority is required to comply with the ECHR in the performance of all of its functions because it is a public authority ‘through and through’.¹⁵ The identification of a core public authority should be relatively straightforward: for example, a local authority is a public authority and thus must observe the ECHR when exercising all of its functions, including when acting as a landlord of local authority housing.

A hybrid public authority is only required to comply with the ECHR when exercising those functions that are of a public nature. It is not so constrained when performing a private function.

Whether or not a particular body is subject to s 6 thus requires ‘a two-fold assessment’:¹⁶ firstly, a consideration of whether some of its functions have a public character, so that it qualifies as a hybrid public authority; and secondly, whether the particular function in question was a public function and thus subject to scrutiny. The tests are not always easy to divine¹⁷ and Howell has complained that ‘*unfortunately the cases reveal at best a lack of consistency and, at worst an apparent lack of awareness of the importance of the question, or at least a disinclination to deal with it directly*’.¹⁸

Whether or not a registered provider of social housing, although not a core public authority, is a hybrid public authority which is acting in a public or private capacity are significant questions for housing lawyers. The Court of Appeal has provided guidance in *London Quadrant Housing Trust v Weaver*.¹⁹ Registered providers of social housing (previously known as Registered Social landlords and referred to as RSL in the extract below) provide accommodation to those in need with the assistance of government funded grants and are subject to statutory regulation in the management of their housing stock. As a registered provider and an independent legal entity with charitable status, London Quadrant entered into private tenancy agreements directly with its tenants although some of those tenants were allocated by local authorities to meet their housing responsibilities to those unable to secure accommodation on the open market. Mrs Weaver was one such tenant who fell into rental arrears and was evicted by London Quadrant. The issue that fell to be determined was whether in terminating Mrs Weaver’s tenancy London Quadrant was subject to s 6 of the HRA 1998 because it was a hybrid public authority which was acting in a public, rather

¹³ See s 6(3). ¹⁴ [2003] UKHL 37, [2004] 1 AC 546. ¹⁵ *Per* Lord Hope at [35].

¹⁶ See *Aston Cantlow and Wilmcote with Billesley Parochial Church Council v Wallbank* [2003] UKHL 37, [2004] 1 AC 546, *per* Lord Hobhouse at [85].

¹⁷ The House of Lords was divided in *Aston Cantlow*, with Lord Scott deciding that the parochial church council, whilst not a core public authority, was exercising a public function as a hybrid public authority. See, also, *YL v Birmingham CC* [2007] UKHL 27, [2008] 1 AC 95. The restricted scope of the definition has been criticized: see Clayton, ‘The Human Rights Act Six Years On: Where Are We Now?’ [2007] EHRLR 11.

¹⁸ ‘The Human Rights Act 1998: Land, Private Citizens, and the Common Law’ (2007) 123 LQR 618.

¹⁹ [2009] EWCA Civ 587, [2010] 1 WLR 363. See also the previous decision in *Poplar Housing and Regeneration Community Association v Donoghue* [2001] EWCA Civ 595, [2002] QB 48.

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5-015 The agreements made as a result of contracting-out are legal contracts. There is a legally binding obligation between two entities with separate legal status. Prior to Brexit this was governed by the EU law regime on public procurement, which contained obligations relating to the competitive process. It remains to be seen how far these rules are retained for the future as part of UK law.

The legal foundation for contracting-out is as follows. Part II of the Deregulation and Contracting-out Act 1994 makes provision for the contracting-out of certain functions by government to bodies, which will normally be private. Government departments have however frequently contracted-out functions independently of this Act. The statute was passed to enable the body to which the power has been contracted-out to operate in the name of the minister, by analogy with the *Carltona* principle.⁵⁸

Section 69 enables functions which, by virtue of any enactment or rule of law, can be performed by an officer of a minister, to be contracted-out to an authorised party, and s.70 contains an analogous provision for **contracting-out by local authorities**.⁵⁹ Section 69(5)(c) makes it clear that the minister may still exercise the function to which the authorisation relates. Section 71 imposes limits on the functions that can be contracted-out. Section 72(2) is designed to render **the minister ultimately responsible for action taken by the body to which the power has been contracted-out**, although the meaning of this particular section is not free from doubt. It is clear from s.72(3)(b) that s.72(2) does not apply in respect of any criminal proceedings brought against the person to whom the power has been contracted-out. The precise import of s.72(3)(a) is far less clear.⁶⁰ This states that s.72(2) does not apply “for the purposes of so much of the contract made between the authorised person and the Minister, office-holder or local authority as relates to the exercise of the function”.

We are therefore faced with an increasingly complex picture in relation to contracting-out as a whole. Contracting-out has been a feature of governmental policy for some time, and has often been undertaken without statutory foundation. The Deregulation and Contracting-out Act is facultative not mandatory: a minister *may* provide for a function to be contracted-out using the provisions of the Act. There are therefore at least two tracks a department can follow if it wishes to contract-out. It can do so independently of the Act, or it

authorities and were made pursuant to statutory powers.¹⁴¹ The legislation made it clear that the accommodation could be provided either “in house”, by the local authority itself,¹⁴² or it could be contracted-out to third parties.¹⁴³

Lord Woolf CJ adhered to the approach in *Donoghue*. If the local authority itself provided accommodation, it would be performing a public function. This would also be so where it made arrangements for the accommodation to be provided by LCF. This did not however mean that LCF should be regarded as performing a public function so as to come within the HRA.¹⁴⁴ Lord Woolf then considered the factors in *Donoghue* to determine whether the LCF should be regarded as a public authority for the purposes of the HRA.¹⁴⁵ He concluded that it should not. The mere fact of public funding by the local authority for the accommodation was not determinative of whether the functions were public or private.¹⁴⁶ There was, said Lord Woolf, no other evidence of there being a public flavour to the functions of LCF or LCF itself, which did not exercise statutory powers in caring for the appellants.¹⁴⁷

20–030 The reasoning and result in *Leonard Cheshire* were challenged before the House of Lords in *YL*.¹⁴⁸ The claimant, who was 84, suffered from Alzheimer’s disease. The defendant council had a statutory duty under the National Assistance Act 1948 to make arrangements for providing her with residential accommodation,¹⁴⁹ and it chose to fulfil that duty, as it was allowed to,¹⁵⁰ by contracting with the second defendant company, an independent provider of health and social care services, for the claimant to be placed in one of its care homes, which accommodated both privately funded residents and those whose fees were paid by the council in full or in part. The claimant’s fees were paid by the council, save for a small top-up fee paid by her relatives. The company subsequently sought to terminate the contract for her care and remove her from the home. The claimant argued that the company fell within s.6(3)(b) of the HRA and that its actions were in breach of arts 2, 3 and 8 ECHR.

The majority of the House of Lords rejected the claim. The reasoning was complex, but in essence was as follows. The majority distinguished between the function of a local authority in making arrangements pursuant to the 1948 Act for those in need of care and

IN THE SUPREME COURT OF THE UNITED KINGDOM

ON APPEAL FROM THE COURT OF APPEAL (CIVIL DIVISION)

Between:

BROCKWELL INN (Appellant)

v

R (on the application of) BARBARA (Respondent)

JUNIOR COUNSEL FOR THE APPELLANT'S LIST OF AUTHORITIES

Cases:

1. *R (on the application of ZH and CN) (Appellants) v London Borough of Newham and London Borough of Lewisham (Respondents)* [2014] UKSC 62
2. *Gillow v The United Kingdom* [1986] ECHR 9063/80
3. *Leeds City Council v Price and others and others (FC)* [2006] UKHL 10

Journals/Books

- *Land Law*, Ben McFarlane, Nicholas Hopkins and Sarah Nield
- *Administrative Law*, Craig

Submitted on behalf of counsel for the Appellant:

Gaius Denne 6 February 2026

BROCKWELL INN (Appellant)

v

R (on the application of) BARBARA (Respondent)

JUNIOR COUNSEL FOR THE APPELLANT'S OUTLINE OF ARGUMENT

The Question on the appeal:

Whether Brockwell Inn's decision to remove Barbara amounts to a violation of her rights under Article 8.

1. The Inn's **removal of Barbara can only be determined as unlawful interference with Barbara's Rights under Article 8 if the Shelter constitutes her 'home'**, as per Article 8(1) HRA [1998]. The Inn did not constitute Barbara's home, since as established in the case of *Gillow v The United Kingdom* [1986] ECHR 9063/80, a home must be a place of residence with which the individual has 'sufficient and continuing links' (McFarlane, 2009).
2. 'Sufficient and continuing links' cannot be made, as Barbara resided in the shelter for only a brief period. Applying the judgement of *Leeds City Council v Price and others and others (FC)* [2006] UKHL 10, occupation of grounds for a 'few days' was insufficient evidence for 'sufficient and continuous links' (Lord Scott of Foscote).
3. The Extreme Weather Act Section 1(2) refers to 'residential accommodation', that Barbara is aware is temporary and conditional. The Inn can end accommodation where the resident has engaged in anti-social behaviour, as stated in the signed Agreement. By signing the Agreement, Barbara has acknowledged (prior to her residence in the accommodation), that the accommodation was to be temporary.
4. The principle in *R v London Borough of Newham and London Borough of Lewisham* [2014] UKSC 62 is that temporary or 'day-to-day' licences of accommodation do not demonstrate intent to allow the homeless applicant 'to make his or her home' in the accommodation (Lord Hodge).
2. Article 8(2) HRA [1998] does not apply to the Inn's removal of Barbara; in the instance that the Shelter is considered a 'home', **the Inn's actions were proportionate to the legitimate aim of the 'prevention of disorder or crime'**, as well as the 'protection of health' of others residing in the Shelter, because of Barbara's anti-social behaviour.



Michaelmas Term

[2014] UKSC 62

On appeal from: [2013] EWCA Civ 804 and 805

JUDGMENT

R (on the applications of ZH and CN) (Appellants)

v

**London Borough of Newham and London Borough
of Lewisham (Respondents)**

and

**Secretary of State for Communities and Local
Government (Interested Party)**

before

**Lord Neuberger, President
Lady Hale, Deputy President**

**Lord Clarke
Lord Wilson
Lord Carnwath
Lord Toulson
Lord Hodge**

JUDGMENT GIVEN ON

12 November 2014

Heard on 23, 24 and 26 June 2014

“dwelling” generally connotes a greater degree of settled occupation than “residence”.

45. Pulling together the threads of the case law, in my view the following can be stated: (i) the words “live at”, “reside” and “dwell” are ordinary words of the English language and do not have technical meanings, (ii) those words must be interpreted in the statutes in which they appear having regard to the purpose of those enactments, (iii) as a matter of nuance, “dwelling” as a general rule suggests a more settled occupation than “residence” and can be equated with one’s home, although “residence” itself can in certain contexts (such as the two-home cases) require such an equation, and (iv) under the 1996 Act a person remains homeless while he or she occupies temporary accommodation provided under sections 188(3), 190(2), 200(1) or 204(4) of the 1996 Act so long as the occupation is properly referable to the authority’s performance or exercise of those statutory duties or powers. In my view it is consistent with this approach to conclude in the context of PEA 1977 that an **overnight or day-to-day licence of accommodation pending the making of a decision under section 184 or on review or appeal does not show any intention to allow the homeless applicant to make his or her home in that accommodation.**

(ii) The exclusions in section 3A of PEA 1977

46. Mr Arden also contended that section 3(1) and (2B) of PEA 1977 covered all residential tenancies or licences unless they were expressly excluded by section 3A of that Act. The exclusions in section 3A included several arrangements which were likely to be temporary in nature. He submitted that by defining the excluded tenancies and licences, Parliament had expressed an intention that all other residential tenancies and licences were subject to the protections in sections 3 and 5 of PEA 1977.
47. I am not persuaded that that submission is correct. If, by providing the exclusions, Parliament meant that otherwise the excluded tenancies or excluded licences would have been within the concepts of “let as a dwelling” or “occupied as a dwelling under a licence” (section 3(1) and (2B)), that would have had the effect of altering the meaning of “dwelling” from that of the Rent Acts, in which the protection against eviction originated. As mentioned above, it is clear from prior case law (*Walker v Ogilvy*) that holiday lets did not fall within the expression “let as a separate dwelling”. But such lets are expressly excluded in section 3A(7)(a). Similarly, the Rent Acts treated a tenancy under which the occupier shared accommodation with the landlord and other persons as a restricted contract rather than a protected tenancy: Rent Act 1977 section 21. Yet such was expressly excluded in

OPINIONS
OF THE LORDS OF APPEAL
FOR JUDGMENT IN THE CAUSE

**Kay and others and another (FC) (Appellants) v. London Borough of
Lambeth and others (Respondents)**

**Leeds City Council (Respondents) v. Price and others and others (FC)
(Appellants)**

Appellate Committee
Lord Bingham of Cornhill
Lord Nicholls Of Birkenhead
Lord Hope of Craighead
Lord Scott of Foscote
Lord Walker of Gestingthorpe
Baroness Hale of Richmond
Lord Brown of Eaton-under-Heywood

Counsel

Appellants:
Jan Luba QC
David Watkinson
Kelvin Rutledge
Alex Offer
(Instructed by Davies Gore Lomax for the Leeds
appellants, and Nicholas & Co and Thomas & Co
for the Lambeth appellants)

Respondents:
London Borough of Lambeth
Andrew Arden QC
Terence Gallivan
John McCafferty
(Instructed by Devonshires)
Leeds City Council
Ashley Underwood QC
Thomas Tyson
(Instructed by Leeds City Council)

Interveners

Philip Sales and Daniel Stilitz intervening in both appeals (Instructed by Treasury Solicitor) for the
First Secretary of State
Written intervention in the second appeal by Justice and Liberty

Hearing dates:
12, 13, 14 and 15 December 2005

ON
WEDNESDAY 8 MARCH 2006

“whether or not a particular habitation constitutes a ‘home’ which attracts the protection of article 8(1) will depend on the factual circumstances, namely, the existence of sufficient and continuous links.”

129. It could not, in my opinion, credibly be suggested that in the two days between the entry by the Maloneys on the recreation ground and the commencement by Leeds of possession proceedings the Maloneys had established “sufficient and continuous links” with the piece of land on which their caravan stood so as to constitute that singular piece of land their article 8(1) “home”.

130. In my opinion, the *Leeds* case was a very bad one to choose for the purpose of revisiting the correctness of *Qazi* since, whether the appellants’ arguments be right or wrong, it is grotesque to suppose that the Maloneys could claim that the commencement by Leeds of possession proceedings to recover its recreation ground was an interference with their right to respect for a “home” that they had established on Leeds’ land. Be that as it may, the *Lambeth* case, by contrast, seems to me a very good test case.

131. Both Judge Bush and the Court of Appeal, following *Qazi*, rejected the Maloneys’ reliance on article 8.

The facts in the Lambeth case

132. This case involves residential premises as opposed to open spaces on which caravans may be parked. The properties in question are owned by Lambeth and are mostly in the area of Rushcroft Road London SW2. They are, and have been for several years, occupied by the appellants and it is common ground that they constitute the appellants’ homes for article 8 purposes. The properties are part of Lambeth’s “short life” housing stock, that is to say, they “are not in a condition suitable for normal housing use or capable of being rendered so suitable within finances available to Lambeth” (per Auld LJ at para 7 of his Court of Appeal judgment).

133. London and Quadrant Housing Trust (“LQHT”) is a charitable housing trust. In 1979 Lambeth and LQHT came to an informal arrangement under which Lambeth licensed “short life” premises to

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However, this wider meaning of home is fundamental to claims that Article 8 provides a 'new form of proprietary entitlement.' It opens up the respect due to the home under Article 8 to possibilities beyond the traditional boundaries of property law and forces property lawyers to look at the concept of home in a much wider context.

The autonomous meaning of home in Strasbourg jurisprudence is defined by the 'sufficient and continuing links' that the claimant has with a dwelling. These links owe more to the social and psychological attachment or bond that develops with a particular dwelling and neighbourhood rather than proprietary rights. The concern is not just with the use of a dwelling as a mere shelter but also with abstract, but nevertheless powerful, ties to a particular place and locality. The concept of home is thus used in symbolic terms, rather than restricted by functionality, and as such dovetails with the similar Article 8 demands for respect for a person's 'private and family life.' A home is thus '*not just a place where one lives but also the place where one feels one belongs*' [see Buyse *Strings Attached: the concept of home in the case law of the ECHR* (2006) EHRLR 294 at 296]. It is concerned with '*identity, self determination, physical and mental integrity, ... and a settled and secure home and place in community*.' [see *Connors v UK* at [82]] [...] Fox in her book *Conceptualising Home: Theories, Law and Policy* [Oxford, Hart:2007] explores the meaning of home beyond its physical structure to the concept of home as 'territory', home as 'identity', home as 'social and cultural unit' as well as home as 'a financial investment.' It is these intangible values of home which capture the essence of 'sufficient and continuing links' beyond a dwelling's tangible bricks and mortar. Yet lawyers and judges seem to find these home meanings challenging to accommodate for it is this wider concept of home which underpins the conflict between domestically recognised proprietary rights and the respect due to the home under Article 8.

Although the meaning of home is not easy to pin down, the home test of 'sufficient and continuing links' has generally not been difficult for a victim to pass unless their temporal connection with their home has been brief.¹⁰⁸ For instance, in *Leeds CC v Price*¹⁰⁹ occupation of a traveller's site for just a few days was insufficient.¹¹⁰

4.1.2 The implications of respect

As Feldman notes, respect has both negative and positive connotations that can encompass a wide variety of actions. Negative protection of the home encompasses protection from government interference, from (for example) police powers of entry and search,¹¹¹ or the regulation of land use through compulsory purchase,¹¹² and planning or residency controls.¹¹³ Positive obligations are also placed upon governments to frame the law in such a way that individuals are at liberty to enjoy their homes and to exercise their chosen way of life.¹¹⁴

¹⁰⁸ *Hounslow LBC v Powell* [2011] UKSC 8, [33].

¹⁰⁹ [2006] 2 AC 465.

¹¹⁰ See also *O'Rourke v UK* App No 39022/97 where occupation of a hotel room for less than a month was inadequate.

¹¹¹ *McLeod v UK* (1999) 27 EHRR 493 and *Keegan v UK* (2007) 44 EHRR 33.

¹¹² *Howard v UK* (1987) 9 EHRR CD116.

¹¹³ *Gillow v UK* (1989) 11 EHRR 335 and *Buckley v United Kingdom* (1997) 23 EHRR 101.

¹¹⁴ *Marckx v Belgium* (1979) 2 EHRR 330. A positive duty may also arise to protect a particularly vulnerable group: see *Connors v UK* (2005) 40 EHRR 9.

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control. It is clear, as a matter of principle, that proportionality assumes that the public body was entitled to pursue its desired objective. The presumption is, therefore, that the general objective was a legitimate one, and that the public body was not seeking to achieve an improper purpose. If the purpose was improper then the exercise of discretion should be struck down on this ground, without investigation as to whether it was disproportionate. Proportionality should only be considered when the controls of purpose and relevancy have been satisfied. If we bypass this level of control then the danger is that the courts will assume that the public body was able to use its discretion for the purpose in question, the only live issue being whether it did so proportionately.

Let us turn now to the *meaning* of the concept itself. Proportionality involves some balance between interests or objectives, and an appropriate relationship between means and ends. We must therefore identify the relevant interests, and ascribe some weight to them. A decision must then be made as to whether the public body's decision was proportionate or not, in the light of the preceding considerations. The most common formulation⁹² is a three-part analysis. The court considers:

- i. Whether the measure was suitable to achieve the desired objective.
- ii. Whether the measure was necessary for achieving the desired objective.
- iii. Whether it none the less imposed excessive burdens on the individual. The last part of this inquiry is often termed proportionality *stricto sensu*.

The court will decide how *intensively* to apply these criteria, which may require the court to consider *alternative strategies* for attaining the desired end. This follows from the fact that the court will, in fundamental rights cases, consider whether there was a less restrictive method for attaining the desired objective. The need to consider alternative strategies may well also arise in other cases. Where the decision is of a technical or professional nature it may require specialist evidence as to the practicability of alternative strategies.⁹³